

Exhibit 10.1

LOGO

APPLE INC.

2022 EMPLOYEE STOCK PLAN

SECTION 1. INTRODUCTION.

This 2022 Employee Stock Plan was approved by the Company's shareholders on March 4, 2022 (the "Approval").

The purpose of the Plan is to promote the long-term success of the Company and the creation of shareholder value by providing Participants the opportunity to share in such long-term success by acquiring a proprietary interest in the Company.

The Plan seeks to achieve this purpose by providing for discretionary long-term incentive Awards in the form of Options, ISOs or NSOs), SARs, Stock Grants, or Restricted Stock Units.

Capitalized terms shall have the meaning provided in Section 2 unless otherwise provided in this Plan or any related Award Agreement.

SECTION 2. DEFINITIONS.

(a) "2014 Plan" means the Apple Inc. 2014 Employee Stock Plan, as amended and restated as of October 1, 2014.

(b) "Applicable Laws" means all applicable corporate, securities, tax, labor and exchange control laws, rules, regulations and orders of any governmental authority relating to the administration of stock plans, including, but not limited to, all applicable U.S. federal, state and local laws, rules, regulations of any stock exchange or quotation system on which the Common Stock is listed or quoted, and the applicable labor and exchange control laws, rules, regulations or requirements of any foreign country or jurisdiction where Awards are granted under the Plan or where Participants reside or provide services, as such laws, rules, regulations and requirements may change from time to time.

(c) "Award" means an Option, SAR, Stock Grant, or Restricted Stock Unit.

(d) "Award Agreement" means any Option Agreement, SAR Agreement, Stock Grant Agreement, or Restricted Stock Unit Agreement. Award Agreements shall consist of either (1) a written award agreement in a form approved by the Committee and executed by the Company by an officer duly authorized to act on its behalf, or (2) an electronic notice of award grant in a form approved by the Committee and recorded by the Company (or its designee) in an electronic recordkeeping system used for the purpose of tracking awards under the Plan generally, as the Committee may provide and, in each case and if required by the Committee, executed or electronically accepted by the recipient of the Award in such form and manner as the Committee may require. The Committee may authorize any officer of the Company (other than the particular Award recipient) to execute any or all Award Agreements on behalf of the Company.

(e) "Board" means the Board of Directors of the Company.

(f) "Cashless Exercise" means, to the extent that an Option Agreement so provides and as permitted by Applicable Law, (i) a program approved by the Committee in which payment of the aggregate Exercise Price and/or satisfaction of any applicable Tax-Related Items may be made all or in part by delivery (on a form prescribed by the Committee) of an irrevocable and non-transferable securities broker to sell Shares subject to a vested Option and to deliver all or part of the sale proceeds to the Company, or (ii) a vested Option to be exercised by the Participant irrevocably instructing the Company to withhold a number of Shares subject to the Option having a Fair Market Value on the date of exercise equal to the sum of (x) the product of (A) the Exercise Price multiplied by the number of Shares in respect of which the Option shall have been exercised, plus (y) any applicable Tax-Related Items.

(g) "Change of Control" means any merger, combination, consolidation, or other reorganization in which the Company does not survive as a public company in respect of its Common Stock; any exchange of Common Stock or other securities of the Company in which the Company does not survive (or does not survive as a public company in respect of its Common Stock) or substantially all the business, stock or assets of the Company; a dissolution of the Company; or any other event in which the Company does not survive (or does not survive as a public company in respect of its Common Stock). For the avoidance of doubt, a "Change of Control" shall not constitute a "Change of Control" if it is effected for the purpose of changing the place of incorporation or form of organization of the Parent where substantially all of the persons who are beneficial owners of the Company's outstanding Common Stock prior to such transaction will beneficially own, directly or indirectly, all or substantially all of the combined voting power of the Company or the directors of the Parent resulting from such transaction.

(h) "Code" means the U.S. Internal Revenue Code of 1986, as amended, and the regulations and interpretations promulgated thereunder.

(i) "Committee" has the meaning given to such term in Section 3.

(j) "Common Stock" means the Company's common stock, \$0.00001 par value per Share.

(k) "Company" means Apple Inc., a California corporation.

(l) "Consultant" means an individual who provides bona fide services to the Company, a Parent or a Subsidiary, other than an Executive Officer, Employee or a Director.

(m) "Director" means a member of the Board.

(n) "Disability" means that the Participant is classified as disabled under the long-term disability policy of the Company or, if no such policy applies, the Participant is unable to engage in any substantial gainful activity by reason of any medically determinable physical or mental impairment which can be expected to result in death or which has lasted or can be expected to last for a continuous period of not less than 12 months; provided, however, that with respect to an Option intended to qualify as an ISO, "Disability" shall mean a "permanent and total disability" within the meaning of Code Section 22(e)(3) and with respect to the distribution of non-qualified deferred compensation, "Disability" shall mean a "Disability" within the meaning of Section 409A or by reference to a "Disability" shall mean a "Disability" within the meaning of Section 409A or by reference to a "Disability" within the meaning of Section 409A.

(o) "Employee" means any individual who provides services as an employee of the Company, a Parent or a Subsidiary, other than a Director that is also an Employee).

(p) "Exchange Act" means the U.S. Securities Exchange Act of 1934, as amended.

(q) "Exercise Price" means, in the case of an Option, the amount for which a Share may be purchased upon exercise of such Option, as specified in the applicable Option Agreement. "Exercise Price," in the case of a SAR, means an amount, as specified in the applicable SAR Agreement, which is subtracted from the Fair Market Value at the time such SAR is exercised in determining the net cash payable upon exercise of such SAR.

(r) "Fair Market Value" means, unless otherwise determined or provided by the Committee in the circumstances, the closing price (in regular trading) for a Share on the Nasdaq Stock Market (the "Nasdaq") for the date in question or, if no sales of Common Stock were reported on the Nasdaq on that date, the last price (in regular trading) for a Share on the Nasdaq for the last preceding date on which sales of Common Stock were reported on the Nasdaq. The Committee may, however, provide with respect to one or more Awards that the Fair Market Value shall equal the last price for a Share on the Nasdaq on the last trading day preceding the date in question or the high and low trading prices of a Share on the Nasdaq for the date in question or the most recent trading day. If the Company is no longer listed or is no longer actively traded on the Nasdaq as of the applicable date, the Fair Market Value of the Award shall be the value as reasonably determined by the Committee for purposes of the Award in the circumstances. The Committee may, however, provide a different methodology for determining Fair Market Value with respect to one or more Awards if a different methodology is deemed advisable to secure any intended favorable tax, legal or other treatment for the particular Award(s) (for example, and without limitation, the Committee may provide that Fair Market Value for purposes of one or more Awards will be based on an average of closing prices (or average of high and low daily trading prices) for a specified period preceding the relevant date).

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- (s) "Fiscal Year" means the Company's fiscal year.
- (t) "Full-Value Awards" means Awards granted under the Plan other than Options and SARs.
- (u) "Full-Value Award Ratio" means the share-counting ratio applicable to Full-Value Awards as specified in Section 5.
- (v) "Grant Date" means the date on which the Committee makes the determination to grant an Award or such later date as the Committee may specify in making such determination.
- (w) "Incentive Stock Option" or "ISO" means an incentive stock option described in Code Section 422.
- (x) "Non-Employee Director" means a member of the Board who is not an Employee.
- (y) "Nonstatutory Stock Option" or "NSO" means a stock option that is not an ISO.
- (z) "Option" means an ISO or NSO granted under the Plan entitling the Participant to purchase Shares upon satisfaction of the conditions contained in the Plan and the applicable Option Agreement.
- (aa) "Parent" means any corporation or other entity that beneficially owns directly or indirectly a majority of the Company's outstanding voting stock or voting power. An entity that attains the status of a Parent on a date after the adoption of the Plan shall be deemed a Parent commencing as of such date.
- (bb) "Participant" means an Employee or Consultant who has been granted an Award by the Committee under the Plan, or an estate or other entity holding a transferred Award pursuant to Section 4(c).
- (cc) "Performance Goals" means one or more measurable performance goals established by the Committee with respect to the Performance Period, including without limitation, one or more of the following criteria: (i) operating income; (ii) earnings before interest, taxes, depreciation and amortization; (iii) earnings; (iv) cash flow; (v) market share; (vi) sales or revenue; (vii) expense ratio; (viii) goods sold; (ix) profit/loss or profit margin; (x) working capital; (xi) return on equity or assets; (xii) earnings per share; (xiii) shareholder return; (xiv) price/earnings ratio; (xv) debt or debt-to-equity; (xvi) accounts receivable; (xvii) writeoffs; (xviii) capital expenditures; (xix) liquidity; (xx) operations; (xxi) intellectual property (e.g., patents); (xxii) product development; (xxiii) manufacturing; (xxiv) inventory; (xxv) mergers and acquisitions or divestitures; (xxvi) Apple values, key community initiatives or other environmental, social and governance objectives; (xxvii) stock price; and/or (xxviii) any other performance objective selected by the Committee. Any goal may be measured, as applicable, (a) in absolute terms, (b) in relative terms (including but not limited to, the passage of time relative to other companies or financial metrics), (c) on a per share and/or share per capita basis, (d) against the performance of the Company as a whole or against particular entities, segments, operating units or products of the Company and/or (e) on a pre-tax or after-tax basis.
- (dd) "Performance Period" means any period not exceeding 120 months as determined by the Committee, in its sole discretion. The Committee may establish different Performance Periods for different Participants, and the Committee may establish overlapping Performance Periods.
- (ee) "Plan" means this Apple Inc. 2022 Employee Stock Plan, as amended from time to time.
- (ff) "Re-Price" or "Re-Pricing" means any of the following actions taken by the Committee: (1) lowering or reducing the Exercise Price of an outstanding Option and/or outstanding SAR, (2) cancelling, exchanging or surrendering any outstanding Option and/or outstanding SAR in exchange for cash or another award for the purpose of repricing the award; (3) cancelling, exchanging or surrendering any outstanding Option and/or outstanding SAR in exchange for an Option or SAR with an Exercise Price that is less than the Exercise Price of the original award; and (4) any other action that is treated as a repricing under U.S. generally accepted accounting principles; provided that, in no case, a Re-Pricing (or Re-Price, as the case may be) shall not include (x) any action taken with shareholder approval or (y) any adjustment of an Option or SAR pursuant to Section 11.
- (gg) "Restricted Stock Unit" or "RSU" means a restricted stock unit granted under the Plan. A restricted stock unit is a benefit representing the unfunded and unsecured right to receive the equivalent of one Share under the Plan, subject to the terms and conditions of the Plan.

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- (hh) "Restricted Stock Unit Agreement" means the agreement described in Section 9 evidencing a Restricted Stock Unit Agreement.
- (ii) "SAR Agreement" means the agreement described in Section 7 evidencing a Stock Appreciation Right Agreement.
- (jj) "SEC" means the U.S. Securities and Exchange Commission.
- (kk) "Section 16 Persons" means those officers, directors or other persons who are subject to Section 16 of the Exchange Act.
- (ll) "Securities Act" means the U.S. Securities Act of 1933, as amended.
- (mm) "Share" means one share of Common Stock.
- (nn) "Stock Appreciation Right" or "SAR" means a stock appreciation right awarded under the Plan.
- (oo) "Stock Grant" means Shares awarded under the Plan pursuant to Section 8.
- (pp) "Stock Grant Agreement" means the agreement described in Section 8 evidencing a Stock Grant Agreement.
- (qq) "Option Agreement" means the agreement described in Section 6 evidencing an Option Agreement.
- (rr) "Subsidiary" means any corporation or other entity a majority of whose outstanding voting stock or voting power is owned, directly or indirectly by the Company. An entity that attains the status of a Subsidiary on a date after the adoption of this Plan shall be considered a Subsidiary commencing as of such date.
- (ss) "Tax-Related Items" means any U.S. federal, state, local taxes and/or any taxes imposed by a foreign jurisdiction, including but not limited to, income tax, social taxes, social insurance or similar contributions, payroll tax, fringe benefits tax, payment of taxes, employment tax, stamp tax and any other taxes related to participation in the Plan and legally applicable to Participants and the employer liabilities that Participants are liable for pursuant to Applicable Laws or a Participant's Award Agreement.
- (tt) "10-Percent Stockholder" means an individual who owns more than 10% of the total combined voting power of all outstanding stock of the Company or of its parent corporation or subsidiary corporation (as defined in Code Sections 424(b) and 424(c)). In determining stock ownership, the attribution rules of Code Section 424(d) shall be applied.
- (uu) "Termination of Service" means (i) in the case of an Employee, a cessation of the active provision of employment-related services by the Employee for the Company and its Subsidiaries for any reason, including but not by way of limitation, a termination by resignation, discharge, death, disability, or retirement, but excluding any such termination where there is a simultaneous reemployment by the Company or a Subsidiary and excluding any bona fide Company (or Subsidiary) approved leave of absence; and (ii) in the case of a Consultant, a cessation of the active service relationship (as determined by the Committee in its sole discretion) between the Consultant and the Company and its Subsidiaries for any reason, including but not by way of limitation, a termination by resignation, discharge, or disability, but excluding any such termination where there is a simultaneous re-engagement of the Consultant by the Company or a Subsidiary. For purposes of the Plan and any Award, if an entity ceases to be a Subsidiary of the Company, a Termination of Service shall be deemed to have occurred with respect to each Employee and Consultant in respect of such Subsidiary who does not continue as an Employee or Consultant in respect of the Company or another Subsidiary that continues as such after giving effect to the termination or other event giving rise to the change in status unless the Subsidiary that is sold, spun-off or otherwise divested (or its successor or indirect parent of such Subsidiary or successor) assumes the Employee's or Consultant's Award(s) in connection with the termination. Notwithstanding the foregoing provisions of this definition, with respect to any Award that constitutes a "nonqualified deferred compensation plan" within the meaning of Code Section 409A as to which a Termination of Service is or could be an event triggering the Award holder to the delivery of Shares or other payment, a Participant shall not be considered to have experienced a Termination of Service unless the Participant has experienced a "separation from service" within the meaning of Code Section 409A (as such term is defined in the Service Agreement).

SECTION 3. ADMINISTRATION.

(a) Committee Composition. The Board or a Committee appointed by the Board shall administer the Plan. The Committee shall have membership composition which enables Awards granted to Section 16 Persons to qualify as exempt from liability under Section 16(b) of the Exchange Act. However, the Board may also appoint one or more separate Committees, each composed of one or more directors of the Company who need not qualify under Rule 16b-3, that may administer the Plan with respect to Participants who are not Section 16 Persons, may grant Awards under the Plan to such Participants and may determine all terms of such Awards. Any such Committee shall serve for such period of time as the Board may determine and shall be subject to removal by the Board at any time. The Board may also at any time terminate the functions of any Committee and reassume all powers and authorities delegated to the Committee.

The Board and any Committee appointed to administer the Plan is referred to herein as the "Committee."

- (b) Authority of the Committee. Subject to the provisions of the Plan, the Committee shall have the full authority, in its sole discretion, to take any actions it deems necessary or advisable for the administration of the Plan. Such actions shall include:
- (i) selecting Participants who are to receive Awards under the Plan;
 - (ii) determining the Fair Market Value for purposes of any Award;
 - (iii) determining the type of and number of securities to be subject to each Award, and the Grant Date, vesting schedule, and other terms, features and conditions of such Awards;
 - (iv) approving the forms of Award Agreements to be used under the Plan;
 - (v) amending or cancelling any outstanding Awards or Shares underlying outstanding Awards;
 - (vi) accelerating the vesting or extending the post-termination exercise term of Awards at any time and under such terms and conditions as it deems appropriate (including, without limitation, in connection with a Termination of Service due to the Participant's Death, Disability, or retirement), or tolling the vesting of Awards at any time and under such terms and conditions as it deems appropriate (including, without limitation, in connection with a Participant's leave of absence), subject, in each case, to the applicable required consent under Section 15;
 - (vii) construing and interpreting the Plan, any Award Agreement or any other documents defining the rights and obligations of the Company, its Subsidiaries, and Participants under the Plan;
 - (viii) correcting any defect, supplying any omission or reconciling any inconsistency in the Plan or any Award Agreement;
 - (ix) adopting such rules or guidelines as it deems appropriate to implement the Plan;
 - (x) authorizing any person to execute on behalf of the Company any instrument required to effect the grant of an Award previously authorized by the Committee;
 - (xi) adjusting the number of Shares subject to any Award, adjusting the price of any or all outstanding Awards, or changing previously imposed terms and conditions, in such circumstances as the Committee may deem appropriate, in accordance with the provisions of Sections 5 and 15, and subject to the prohibition on Re-Pricing set forth below;
 - (xii) determining whether, and the extent to which, adjustments are required pursuant to Section 11 hereof in the event of termination, conversion, substitution or succession of Awards upon the occurrence of a Change of Control as described in Section 11, subject to Applicable Laws;
 - (xiii) acquiring or settling (subject to Sections 14 and 15) rights under Awards in cash, stock of equivalent value, or other consideration, subject to the prohibition on Re-Pricing set forth below;
 - (xiv) making all other decisions relating to the operation of the Plan; and
 - (xv) adopting such rules, plans or subplans as may be deemed necessary or appropriate to facilitate compliance with the laws of countries outside of the U.S., allow for tax-favorable treatment of Awards or otherwise provide for the participation by Participants who reside outside of the U.S.

In no event shall the Committee Re-Price any Option or SAR.

The Committee's determinations under the Plan shall be final and binding on all persons. The Committee's determination need not be the same for all persons.

(c) Indemnification. To the maximum extent permitted by Applicable Laws, each Director and member of the Committee shall be indemnified and held harmless by the Company against and from (i) any loss, cost, liability, or expense that may be reasonably incurred by the Participant in connection with or resulting from any claim, action, suit, or proceeding to which the Participant may be a party or in which the Participant may be involved by reason of any action taken or failure to act under the Plan Agreement, and (ii) from any and all amounts paid by the Participant in settlement thereof, with the Company's approval. The Participant in satisfaction of any judgment in any such claim, action, suit, or proceeding against the Participant, provided the Participant shall give the Company an opportunity, at its own expense, to handle and defend the same before the Participant undertakes and defend it on the Participant's own behalf. The foregoing right of indemnification shall not be exclusive of any other right of indemnification to which such persons may be entitled under the Company's Articles of Incorporation or Bylaws, by contract, law, or otherwise, or under any power that the Company may have to indemnify them or hold them harmless.

(d) Reliance on Experts. In making any determination or in taking or not taking any action under the Plan, the Committee may rely upon the advice of experts, including employees and professional advisors to the Company. No director, officer, or the Company or any of its Subsidiaries shall be liable for any such action or determination taken or made or omitted in reliance upon the advice of such experts.

SECTION 4. GENERAL.

(a) General Eligibility. Only Employees and Consultants shall be eligible to participate in the Plan. Non-Employee Directors shall not be eligible to participate in the Plan.

(b) Incentive Stock Options. Only Participants who are Employees of the Company, a "parent corporation" of the Company (within the meaning of Code Section 424(e)) or a "subsidiary corporation" of the Company (within the meaning of Code Section 424(f)) shall be eligible for the grant of ISOs. In addition, a 10-Percent Stockholder shall not be eligible for the grant of an ISO unless the conditions set forth in Code Section 422(c)(5) are satisfied.

(c) Restrictions on Transfer.

(i) Unless otherwise expressly provided in (or pursuant to) this Section 4(c) or required by Applicable Law: (A) Awards shall be non-transferable and shall not be subject in any manner to sale, transfer, anticipation, alienation, assignment, pledge, or other encumbrance; (B) Awards that are Options or SARs shall be exercised only by the Participant; and (C) amounts payable or due pursuant to any Award shall be delivered only to (or for the account of) the Participant.

(ii) The Committee may permit Awards to be exercised by and paid to, or otherwise transferred to, other persons pursuant to such conditions and procedures, including limitations on subsequent transfers, as the Committee may, in its discretion, establish in writing. Any permitted transfer shall be subject to compliance with Applicable Laws and shall not be for value, for nominal consideration, settlement of marital property rights, or for interests in an entity in which more than 50% of the voting power is held by the Participant or by the Participant's family members).

(iii) The exercise and transfer restrictions in Section 4(c) shall not apply to:

(A) transfers to the Company (for example, in connection with the expiration or termination of the Plan);

(B) the designation of a beneficiary to receive benefits in the event of the Participant's death or, if the Participant dies, transfers to or exercise by the Participant's legal beneficiary(ies), or, in the absence of a validly designated beneficiary, will or the laws of descent and distribution,

(C) subject to any applicable limitations on ISOs, transfers to a family member (or former family member) in the normal domestic relations order if approved or ratified by the Company,

(D) if the Participant has suffered a Disability, permitted transfers or exercises on behalf of the Participant by the Participant's legal representative, or

(E) the authorization by the Committee of Cashless Exercise procedures with third party brokers or advisors to provide financing for the purpose of (or who otherwise facilitate) the exercise of Awards consistent with Applicable Laws and the authorization of the Committee.

(d) Beneficiaries. If permitted by the Committee in the Award Agreement and authorized under Applicable Laws, a Participant may name a beneficiary or beneficiaries to whom any vested but unpaid Award shall be paid in the event of the Participant's death. Each such designation shall revoke all prior beneficiary designations by the Participant and shall be effective only if given in a manner acceptable to the Committee. In the absence of any such designation, any vested Awards remaining unpaid at the Participant's death shall be paid to the Participant's estate in accordance with Applicable Laws, the terms of the Plan and of the Award Agreement, and any unexercised vested Award may be exercised by the legal representative, administrator or executor of the Participant's estate.

(e) No Rights as a Shareholder. A Participant, or a transferee of a Participant, shall have no rights as a shareholder with respect to Shares underlying an Award until such person has satisfied all of the terms and conditions to receive said Shares, has paid any applicable Tax-Related Items relating to the Award and the Shares have been issued (as evidenced by an appropriate entry on the books of the Company or a duly authorized transfer agent of the Company).

(f) Termination of Service. The Committee shall establish the effect of a Termination of Service on the rights and benefits under the Award under the Plan and in so doing may make distinctions based upon, inter alia, the cause of termination and type of termination.

(g) Consideration. The purchase price for any Award granted under the Plan or the Shares to be delivered pursuant to the Award, if applicable, may be paid by means of any lawful consideration as determined by the Committee and set forth in the Award Agreement or separately established by the Committee.

SECTION 5. SHARES SUBJECT TO PLAN AND SHARE LIMITS.

(a) Basic Limitation. The Common Stock issuable under the Plan shall be authorized but unissued Shares. The aggregate number of Shares that may be issued pursuant to Awards under the Plan, subject to adjustment pursuant to Section 11, is:

(i) 510 million Shares, plus

(ii) the number of any Shares that remained available under the 2014 Plan for new award grants on the Approval Date, determined immediately before giving effect to the termination of the authority to grant new awards under the 2014 Plan as of the Approval Date, plus such approval, plus

(iii) the number of any Shares subject to stock options granted under the 2014 Plan and outstanding as of the Approval Date which expire, or for any reason are cancelled or terminated, after the Approval Date without being exercised,

(iv) the number of any Shares subject to restricted stock and restricted stock unit awards granted under the 2014 Plan which were outstanding and unvested on the Approval Date that are forfeited, terminated, cancelled or otherwise reacquired by the Company after the Approval Date without having become vested or that are exchanged by a Participant or withheld by the Company or its Subsidiaries after the Approval Date to satisfy the Tax-Related Items related to the award (in each case, with any such Shares, the Shares available for issuance under the Plan based on the Full-Value Award Ratio),

provided that in no event shall the Shares available for issuance under the Plan exceed 1,274,374,682 Shares (which is 510 million Shares set forth above, plus (2) the number of Shares available for new award grants under the 2014 Plan as of September 25, 2021, plus (3) the aggregate number of Shares subject to stock options previously granted and outstanding under the 2014 Plan as of September 25, 2021, plus (4) two (2) times the Full-Value Award Ratio times the aggregate number of Shares subject to restricted stock units previously granted and outstanding under the 2014 Plan as of September 25, 2021).

(b) Share Count. Shares issued pursuant to Full-Value Awards will count against the Shares available for issuance under the Plan as one (1) Share for every one (2) Shares for every one (1) Share issued in connection with the Full-Value Award. Shares issued pursuant to the exercise of SARs under the Plan will count against the Shares available for issuance under the Plan as one (1) Share for every one (2) Shares for every one (1) Share such exercise relates. For purposes of clarity, the total number of Shares subject to SARs that are exercised and settled shall be counted in full on a one-for-one basis against the total number of Shares subject to Options that are exercised, shall be counted in full on a one-for-one basis against the Shares available for issuance under the Plan, regardless of the number of Shares actually issued upon settlement of the Options. If Awards or dividend equivalent rights are settled in cash, the Shares that would have been delivered had there been no settlement shall not be counted against the Shares available for issuance under the Plan. Except as provided in the next sentence, Shares subject to Awards that are forfeited, are terminated, fail to vest or for any other reason are not paid or delivered, shall be counted against the Shares available for Awards under the Plan; provided that any one (1) Share issued pursuant to a Stock Grant or subject to a Full-Value Award (including Shares subject to stock-settled dividend equivalent rights) that is forfeited or terminated shall be credited as two (2) Shares when determining the number of Shares that shall again become available for Awards under the Plan if upon grant, the Shares subject to such forfeited or terminated Awards were counted as two (2) Shares against the Plan reserve. Shares that are exchanged by a Participant or withheld by the Company as full or partial payment in connection with any Option or SAR, as well as any Shares exchanged by a Participant or withheld by the Company or one of its Subsidiaries to satisfy the Tax-Related Items for any Option or SAR, shall be available for subsequent Awards under the Plan. Shares that are exchanged by a Participant or withheld by the Company as full or partial payment in connection with any Full-Value Award, as well as any Shares exchanged by a Participant or withheld by the Company or one of its Subsidiaries to satisfy the Tax-Related Items for any Full-Value Award, shall be available for subsequent Awards under the Plan provided that any one (1) Share so exchanged or withheld in connection with any Full-Value Award shall be credited as two (2) Shares when determining the number of Shares that shall again become available for Awards under the Plan if upon grant, the Shares subject to the related Full-Value Award were counted as two (2) Shares against the Plan reserve. Refer to Section 15(i) for application of the foregoing Share limits with respect to substituted awards.

(c) Share Limits.

(i) Limits on Options and SARs. No Participant shall receive Options or SARs during any Fiscal Year covering, in the aggregate, in excess of 7,000,000 Shares, subject to adjustment pursuant to Section 11.

(ii) Limits on Stock Grants and Restricted Stock Units. No Participant shall receive Stock Grants or Restricted Stock Units during any Fiscal Year covering, in the aggregate, in excess of 7,000,000 Shares (for this purpose, (A) counting such Shares on a one-for-one basis and (B) for Stock Grants or Restricted Stock Units as to which the number of Shares earned is dependent on the achievement of performance vesting conditions, counting in respect thereof the number of Shares that may be earned at maximum under the applicable award agreement) subject to adjustment pursuant to Section 11.

(d) Reservation of Shares; Fractional Shares. The Company shall at all times reserve a number of Shares sufficient to satisfy the Company's obligations and contingent obligations to deliver Shares with respect to Awards then outstanding under the Plan (including any dividend equivalent obligations to the extent the Company has the right to settle such rights in cash). Unless the Committee determines otherwise, no fractional Shares shall be issuable pursuant to the exercise or settlement of Awards under the Plan. The Committee shall also have the authority to determine whether fractional Shares shall be rounded down or a cash payment shall be made in lieu of fractional Shares.

SECTION 6. TERMS AND CONDITIONS OF OPTIONS.

(a) Option Agreement. Each Option granted under the Plan shall be evidenced and governed exclusively by an Option Agreement entered into between the Participant and the Company. Such Option shall be subject to all applicable terms and conditions of the Plan and subject to any other terms and conditions that are not inconsistent with the Plan and that the Committee deems appropriate to be included in an Option Agreement. Dividend equivalent rights shall not be awarded on Options. The provisions of the various Option Agreements entered into under the Plan need not be identical. The Option Agreement shall specify whether the Option is an ISO or a Non-ISO.

(b) Number of Shares. Each Option Agreement shall specify the number of Shares that are subject to the Option, which number shall be subject to adjustment in accordance with Section 11.

(c) Exercise Price. Each Option Agreement shall specify the Option's Exercise Price which shall be established by the Company, subject to adjustment in accordance with Section 11. The Exercise Price of an Option shall not be less than 100% of the Fair Market Value (110% for an ISO granted to a 10-Percent Stockholder) on the Grant Date.

(d) Exercisability and Term. Each Option Agreement shall specify the date when all or any installment of the Option is exercisable and/or any performance conditions or Performance Goals pursuant to Section 10 that must be satisfied before the Option can be exercised. The Option Agreement shall also specify the maximum term of the Option, provided that the maximum term shall in no event exceed ten (10) years from the Grant Date. Notwithstanding any other provision of the Plan or the Option Agreement, the Option can be exercised after the expiration date provided in the applicable Option Agreement.

(e) Method of Exercise. An Option may be exercised, in whole or in part, by giving written notice of exercise to the Company or the Company's designee (or, subject to Applicable Laws and if the Company permits, by electronic or voice methods) of the number of Shares to be purchased. Such notice shall be accompanied by payment in full of the aggregate Exercise Price, plus any required payment for Tax-Related Items (unless satisfactory arrangements have been made to satisfy such Tax-Related Items). The Company reserves the right to delay the issuance of the Shares until such payment obligations are fully satisfied.

(f) Payment for Option Shares. The Exercise Price of an Option shall be paid in cash at the time of exercise, except as otherwise provided for in the applicable Option Agreement:

(i) Cashless Exercise. Payment of all or a part of the Exercise Price may be made through Cashless Exercise.

(ii) Other Forms of Payment. Payment may be made in any other form that is consistent with Applicable Laws and rules and approved by the Committee.

In the case of an ISO granted under the Plan, except to the extent permitted by Applicable Laws, payment shall be made in accordance with the express provisions of the applicable Option Agreement. In the case of an NSO granted under the Plan, the Committee shall have discretion at any time, to accept payment in any form(s) described in this Section 6(f).

SECTION 7. TERMS AND CONDITIONS OF STOCK APPRECIATION RIGHTS.

(a) SAR Agreement. Each SAR granted under the Plan shall be evidenced by a SAR Agreement between the Participant and the Company. Such SAR shall be subject to all applicable terms of the Plan and may be subject to any other terms that are not inconsistent with the Plan. A SAR Agreement may provide for a maximum limit on the amount of any payout notwithstanding the Fair Market Value on the date of exercise of the SAR. Dividend equivalent rights shall not be awarded on SARs. The provisions of the various SAR Agreements entered into under the Plan need not be identical.

(b) Number of Shares. Each SAR Agreement shall specify the number of Shares to which the SAR pertains, which number may be adjusted in accordance with Section 11.

(c) Exercise Price. Each SAR Agreement shall specify the Exercise Price, which is subject to adjustment in accordance with Section 11. A SAR Agreement may specify an Exercise Price that varies in accordance with a predetermined formula while the SAR Agreement shall specify that the Exercise Price of a SAR shall not be less than 100% of the Fair Market Value on the Grant Date.

(d) Exercisability and Term. Each SAR Agreement shall specify the date when all or any installment of the SAR is to become exercisable and/or any performance conditions or Performance Goals pursuant to Section 10 that must be satisfied before the SAR is exercisable. The SAR Agreement shall also specify the maximum term of the SAR which shall not exceed ten (10) years from the Grant Date. SARs shall not be awarded in combination with Options or Stock Grants, and such an Award shall provide that the SARs will not be exercisable if the related Options or Stock Grants are forfeited. A SAR may be included in an ISO only at the time of grant but may be included in an NSO at the time of grant or at any subsequent time. Notwithstanding any other provision of the Plan or the SAR Agreement, the SAR may be exercised after the expiration date provided in the applicable SAR Agreement.

(e) Exercise of SARs. Upon exercise of a SAR, the Participant (or any person having the right to exercise the SAR after the Participant's death) shall receive from the Company (i) Shares, (ii) cash or (iii) any combination of Shares and cash, as the Committee determines at the time of grant of the SAR, in its sole discretion. The amount of cash and/or the Fair Market Value of Shares received upon exercise of SARs shall, in the aggregate, be equal to the amount by which the aggregate Fair Market Value (on the date of exercise) of the Shares received exceeds the aggregate Exercise Price of the exercised SARs.

SECTION 8. TERMS AND CONDITIONS FOR STOCK GRANTS.

- (a) Form of Awards. Awards under this Section 8 may be granted in the form of a Stock Grant.
- (b) Stock Grant Agreement. Each Stock Grant awarded under the Plan shall be evidenced and governed exclusively by a Stock Grant Agreement between the Participant and the Company. Each Stock Grant shall be subject to all applicable terms and conditions of the Stock Grant Agreement and may be subject to any other terms and conditions that are not inconsistent with the Plan that the Committee deems appropriate for inclusion in the applicable Stock Grant Agreement. The provisions of the Stock Grant Agreements entered into under the Plan shall be identical.
- (c) Number of Shares. Each Stock Grant Agreement shall specify the number of Shares to which the Stock Grant pertains, which number is subject to adjustment in accordance with Section 11.
- (d) Vesting Conditions. The Committee shall determine the vesting schedule of each Stock Grant. Vesting shall occur in installments, upon satisfaction of the conditions specified in the Stock Grant Agreement, which may include performance goals or Performance Goals pursuant to Section 10.
- (e) Voting and Dividend Rights. The holder of a Stock Grant awarded under the Plan shall have the same voting, dividend and other rights as the Company's other shareholders, except as otherwise stated in the Stock Grant Agreement; provided, however, that the Stock Grant will be subject to forfeiture and termination (or repayment, as applicable) to the same extent as the corresponding portion of the Stock Grant to which such dividends relate. A Stock Grant Agreement may require that the holder of such Stock Grant invest a portion of the dividends received in additional Shares subject to the Stock Grant. Such additional Shares and any Shares received as a dividend on the Stock Grant shall be subject to the same conditions and restrictions as the Stock Grant with respect to which the dividends were received.

SECTION 9. TERMS AND CONDITIONS OF RESTRICTED STOCK UNITS.

- (a) Restricted Stock Unit Agreement. Each RSU granted under the Plan shall be evidenced by a Restricted Stock Unit Agreement between the Participant and the Company. Such RSU shall be subject to all applicable terms of the Plan and may be subject to any other terms and conditions that are not inconsistent with the Plan. The provisions of the various Restricted Stock Unit Agreements entered into under the Plan shall be identical.
- (b) Number of Shares. Each Restricted Stock Unit Agreement shall specify the number of RSUs to which the Restricted Stock Unit Agreement pertains, which number is subject to adjustment in accordance with Section 11.
- (c) Vesting Conditions. The Committee shall determine the vesting schedule of each RSU Award. Vesting shall occur in installments, upon satisfaction of the conditions specified in the Restricted Stock Unit Agreement, which may include performance goals or conditions or Performance Goals pursuant to Section 10.
- (d) Form and Time of Settlement of Restricted Stock Units. Settlement of vested RSUs may be made in the form of (i) cash, (ii) Shares, or (iii) any combination of both, as determined by the Committee at the time of the grant of the RSUs, in its sole discretion. Vesting of RSUs may be settled in a lump sum or in installments as determined by the Committee and provided in the Restricted Stock Unit Agreement. A dividend equivalent distribution may occur or commence when the vesting conditions applicable to the RSUs have been satisfied or have lapsed. If the Committee so provides in the Restricted Stock Unit Agreement, it may be deferred, in accordance with Applicable Laws. The amount of a deferred distribution may be increased by an interest factor or by dividend equivalents, as determined by the Committee, and provided in the Restricted Stock Unit Agreement.
- (e) Voting and Dividend Rights. The holders of RSUs shall have no voting rights. Prior to settlement or forfeiture, any RSU granted under the Plan may, at the Committee's discretion, carry with it a right to dividend equivalent rights. A dividend equivalent right shall be credited with an amount equal to all cash dividends paid on one Share while the RSU is outstanding and shall be subject to forfeiture and termination to the same extent as the corresponding RSUs to which the dividend equivalent rights relate. Dividend equivalent rights may be converted into additional RSUs, subject to Applicable Laws. Dividend equivalent rights will be subject to the same conditions and restrictions as the RSUs to which they attach. Subject to Applicable Laws, settlement of dividend equivalent rights may be made in the form of cash, in the form of Shares, or in a combination of both, as determined by the Committee at the time of settlement of the RSUs, in its sole discretion.
- (f) Creditors' Rights. A holder of RSUs shall have no rights other than those of a general creditor of the Company. RSUs shall not constitute an unfunded and unsecured obligation of the Company, subject to the terms and conditions of the applicable Restricted Stock Unit Agreement.

SECTION 10. PERFORMANCE-BASED AWARDS.

The Committee may, in its discretion, include performance conditions in an Award. The Committee may provide at the time of the applicable Performance Goals, or at a later time, for the Performance Goals (or performance against the Performance Goals, as the case may be) to be adjusted to mitigate the unbudgeted impact of material, unusual or nonrecurring gains and losses, or other events specified by the Committee.

SECTION 11. PROTECTION AGAINST DILUTION.

(a) Adjustments. Subject to Section 15(d), upon (or, as may be necessary to effect the adjustment, immediately prior to) any reclassification, recapitalization, stock split (including a stock split in the form of a stock dividend) or reverse stock split, any merger, combination, consolidation, or other reorganization; any spin-off, split-up, or extraordinary dividend in respect of the Common Stock; or any exchange of Common Stock or other securities of the Company, or any similar extraordinary corporate transaction in respect of the Common Stock, then the Committee shall equitably and proportionately adjust the number and type of Shares (or other securities) that thereafter may be made the subject of Awards (including the specific maximums and numbers of Shares set forth elsewhere in the Plan), (2) the number, amount and type of Shares (or other securities) subject to any outstanding Awards, (3) the grant, purchase, or Exercise Price of any outstanding Awards, and (4) the securities, cash or other property deliverable upon exercise or payment of any outstanding Awards, in each case to the extent necessary to preserve (but not increase) the level of incentives intended by the Plan and the then-outstanding Awards.

Unless otherwise expressly provided in the applicable Award Agreement, upon (or, as may be necessary to effect the adjustment, immediately prior to) any event or transaction described in the preceding paragraph or a sale of all or substantially all of the assets of the Company as an entirety, the Company shall equitably and proportionately adjust the Performance Goals and the then-outstanding performance-based Awards to the extent necessary to preserve (but not increase) the level of incentives intended by the Plan and the then-outstanding performance-based Awards.

It is intended that, unless otherwise determined by the Committee, any adjustments contemplated by the preceding two paragraphs shall be made in a manner that satisfies applicable legal, tax (including, without limitation and as applicable in the circumstances, Sections 424 and 409A) and accounting (so as to not trigger any charge to earnings with respect to such adjustment) requirements.

Without limiting the generality of Section 3, any good faith determination by the Committee as to whether an adjustment is warranted in the circumstances pursuant to this Section 11(a), and the extent and nature of any such adjustment, shall be conclusive and binding on all persons.

(b) Participant Rights. Except as provided in this Section 11, a Participant shall have no rights by reason of any issue by the Company of stock of any class or securities convertible into stock of any class, any subdivision or consolidation of shares of stock of any class, or any payment of any stock dividend or any other increase or decrease in the number of shares of stock of any class. If by reason of any adjustment pursuant to this Section 11 a Participant's Award covers additional or different shares of stock or securities, the Award shall cover additional or different shares and the Award in respect thereof shall be subject to all of the terms, conditions and restrictions applicable to the Award and the Shares underlying the Award prior to such adjustment, unless otherwise determined in writing by the Committee.

SECTION 12. CHANGE OF CONTROL.

Upon the occurrence of a Change of Control then the Committee may make provision for a cash payment in settlement of the Award, assumption, substitution or exchange of any or all outstanding Awards or the cash, securities or property deliverable to the holder of all outstanding Awards, based upon, to the extent relevant under the circumstances, the distribution or consideration payable on the Common Stock upon or in respect of such Change of Control. Upon the occurrence of a Change of Control, then the Committee has made a provision for the substitution, assumption, exchange or other continuation or settlement of the Award, the Award would otherwise continue in accordance with its terms in the circumstances, each Award shall terminate upon the related event, and that the holder of an Option or SAR shall be given reasonable advance notice of the impending termination and a reasonable opportunity to exercise the Participant's outstanding vested Options and SARs in accordance with their terms before the termination of the Award (except that in no case shall more than ten days' notice of the impending termination be required).

The Committee may adopt such valuation methodologies for outstanding Awards as it deems reasonable in the event of a settlement and, in the case of Options, SARs or similar rights, but without limitation on other methodologies, may base solely upon the excess if any of the per share amount payable upon or in respect of such event over the Exercise Price.

The Committee may take such action contemplated by this Section 12 prior to a Change of Control (as opposed to on the occurrence of such event) to the extent that the Committee deems the action necessary to permit the Participant to realize the benefit of the Award conveyed with respect to the Shares underlying the outstanding Awards.

Without limiting the generality of Section 3, any good faith determination by the Committee pursuant to its authority under the Plan shall be conclusive and binding on all persons.

SECTION 13. LIMITATIONS ON RIGHTS.

(a) Participant Rights. A Participant's rights, if any, in respect of or in connection with any Award are derived solely from the decision of the Company to permit the individual to participate in the Plan and to benefit from a discretionary Award. By accepting an Award under the Plan, a Participant expressly acknowledges that there is no obligation on the part of the Company to continue to grant any additional Awards, Shares underlying such Awards or the cash equivalent. Any Award granted hereunder shall not be compensation of a continuing or recurring nature, or part of a Participant's normal or expected compensation, and shall not represent any portion of a Participant's salary, compensation, or other remuneration for purposes of pension benefit plans, redundancy, resignation or any other purpose.

Neither the Plan nor any Award granted under the Plan shall be deemed to give any individual a right to remain an Employee or director of the Company, a Parent, or any Subsidiary. The Company and its Parent and Subsidiaries reserve the right to terminate the Service of any person at any time, and for any reason, subject to Applicable Laws, the Company's Articles of Incorporation and any applicable written employment agreement (if any), and such terminated person shall be deemed irrevocably to waive any claim to damages or specific performance for breach of contract or dismissal, compensation for loss of office, tort or other claims related to the Plan or any outstanding Award that is forfeited and/or is terminated by its terms or to any future Award.

(b) Shareholders' Rights. Except as provided in Section 8(e), a Participant shall have no dividend rights, voting rights or other rights of a shareholder with respect to any Shares underlying a Participant's Award prior to the issuance of such Shares (as evidenced by an appropriate entry on the books of the Company or a duly authorized transfer agent of the Company). No adjustment shall be made for cash dividends or other rights for which the record date is prior to the date when such Shares are issued, except as expressly provided in Sections 8(e), 9(e) and 11.

(c) Regulatory Requirements. Any other provision of the Plan notwithstanding, the obligation of the Company to issue securities under the Plan shall be subject to all Applicable Laws and such approval by any regulatory body as may be required. The Company reserves the right to restrict, in whole or in part, the delivery of Shares or other securities pursuant to any Award until the satisfaction of all legal requirements relating to the issuance of such Shares or other securities, to their registration, qualification or to an exemption from registration, qualification or listing. The person acquiring any securities under the Plan will, if required, the Company or one of its Subsidiaries, provide such assurances and representations to the Company or one of its Subsidiaries as the Committee may deem necessary or desirable to assure compliance with all applicable legal, tax, and accounting requirements.

(d) Foreign Awards and Rights. Notwithstanding any provision of this Plan to the contrary, in order to facilitate compliance with Applicable Laws in countries in which the Company, Parent or Subsidiaries have Participants, the Committee shall have the power to modify the terms and conditions of any Award granted to Participants to facilitate compliance with Applicable Laws of such jurisdictions where Participants reside and/or establish sub-plans, rules or procedures applicable to particular Subsidiaries or Participants residing in certain jurisdictions; provided, however, that no such sub-plans, modifications or rules shall increase the Shares or Awards contained in Section 5 or result in any other changes to the Plan giving rise to shareholder approval.

SECTION 14. TAXES; SECTION 409A.

(a) General. The Company, a Parent and any Subsidiaries each shall have the authority and right to deduct or withhold from any amount payable to any Participant to remit an amount sufficient to satisfy Tax-Related Items with respect to any taxable event concerning a Participant as a result of the Plan or take any other action as may be necessary in the option of the Company, a Parent or any Subsidiary, appropriate, to satisfy withholding obligations for the payment of Tax-Related Items. The Company, a Parent or any Subsidiary, in its sole discretion and subject to such rules as it may adopt, permit or require a Participant to pay all or a portion of the Tax-Related Items arising in connection with an Award, by, without limitation: (i) having the Participant pay an amount in cash (by check or otherwise), (ii) withholding from the Participant's wages or other cash compensation; (iii) withholding from the proceeds from the sale of Shares underlying an Award either through a voluntary or mandatory sale arranged by the Company on a Participant's behalf, (iv) withholding from any amount payable under the Plan, including delivery of Shares to be made pursuant to an Award granted under the Plan, (v) delivery of Shares (which are not subject to any pledge or other security interest) that have been both held by the Participant for at least six (6) months (or such other period as established from time to time by the Committee to avoid adverse tax treatment under applicable accounting standards) having an aggregate Fair Market Value approximately equal to the amount of the Tax-Related Items withheld, or (vi) any other method of withholding determined by the Committee that is permissible under Applicable Laws. The Company may take any such actions as may be necessary in the opinion of the Company to satisfy all obligations for the payment of Tax-Related Items. The Company shall not be required to issue any Shares or make any cash payment under the Plan if the withholding obligations for Tax-Related Items are satisfied, and the Company shall have no liability to any Participant for the loss of the foregoing right.

(b) Share Withholding. The Committee may (i) permit or require a Participant to satisfy all or part of the Participant's obligations for Tax-Related Items by having the Company withhold all or a portion of any Shares that otherwise would be payable to the Participant, or (ii) permit a Participant to satisfy such obligations by Cashless Exercise, or by surrendering all or a portion of the Shares that the Participant previously acquired, provided that the previously owned Shares have been held for a minimum duration determined satisfactory as established by the Committee in its sole and absolute discretion and further provided that the amount of Shares withheld shall not exceed the amount necessary to satisfy the Tax-Related Items at the maximum rate applicable in the Participant's jurisdiction(s). Any payment of Tax-Related Items by assigning Shares to the Company may be subject to restrictions, in addition to, but not limited to, any restrictions established by the Committee or required by rules of the SEC. Subject to Applicable Laws and the Committee indicates otherwise, if any Shares are used to satisfy Tax-Related Items, such Shares shall be valued based on the Fair Market Value on the date of the withholding event or the last preceding trading day prior to the withholding event.

(c) Section 409A. This Plan is intended to comply with the requirements of Code Section 409A or an exemption or exclusion therefrom, and, with respect to amounts that are subject to Code Section 409A, it is intended that this Plan be administered in accordance with Code Section 409A. Each payment under any Award that constitutes nonqualified deferred compensation shall be treated as a separate payment for purposes of Code Section 409A. In no event may a Participant, directly or indirectly, designate the calendar year of any payment to be made under any Award that constitutes nonqualified deferred compensation subject to Code Section 409A. Notwithstanding any other provision of this Plan or any Award Agreement to the contrary, if the Participant is a "specified employee" within the meaning of Code Section 409A (as determined in accordance with the methodology established by the Company), amounts in respect of an Award that constitute "nonqualified deferred compensation" within the meaning of Code Section 409A that would otherwise be payable by reason of a Participant's Separation from Service during the six-month period immediately following such Separation from Service shall instead be paid or provided on the first business day following the date that is six months after the Participant's Separation from Service. If the Participant dies following the Separation from Service and prior to the payment of such amounts delayed on account of Code Section 409A, such amounts shall be paid to the Participant's estate or the person or persons designated by the Participant's estate within 30 days following the date of the Participant's death.

SECTION 15. DURATION AND AMENDMENTS; MISCELLANEOUS.

(a) Term of the Plan. The Board adopted this Plan on November 9, 2021 (the "Effective Date"). The Plan shall terminate on the tenth anniversary of the Effective Date and may be terminated on any earlier date pursuant to this Section.

(b) Amendment or Termination of the Plan. The Board may, at any time, terminate or, from time to time, amend, modify or suspend the Plan, in whole or in part. No Awards may be granted during any period that the Board suspends the Plan. To the extent that the amendment, termination or suspension is not required by Applicable Laws or deemed necessary or advisable by the Committee, any amendment to the Plan shall be subject to the approval of the Board.

(c) Amendments to Awards. Without limiting any other express authority of the Committee under (but subject to) the express authority of the Plan, the Committee by agreement or resolution may waive conditions of or limitations on Awards to Participants that the Committee, in its prior exercise of its discretion has imposed, without the consent of a Participant, and (subject to the requirements of Section 11) may make other changes to the terms and conditions of Awards. No amendment of an Award, however, shall constitute an action without shareholder approval or otherwise authorize any action that may only be taken at law or under the rules of the principal exchange upon which the Shares are listed to trade with the consent or approval of shareholders without obtaining or conditioning such action upon the receipt of such consent or approval.

(d) Limitations on Amendments to Plan and Awards. No amendment, suspension or termination of the Plan or amendment of any outstanding Award Agreement shall, without written consent of the Participant, affect in any manner materially adverse to the Participant any rights or benefits of the Participant or obligations of the Company under any Award granted under the Plan prior to the date of such change, provided that any amendments to outstanding Award Agreements that the Company determines are necessary or desirable to facilitate compliance with Applicable Laws shall not require written consent of the Participant. Changes, settlements or actions contemplated by Section 11 shall not be deemed to constitute changes or amendments for purposes of this section.

(e) Governing Law. The Plan shall be governed by, and construed in accordance with the laws of the State of California (in the absence of choice-of-law provisions) and applicable U.S. Federal Laws.

(f) Severability. If a court of competent jurisdiction holds any provision invalid and unenforceable, the remaining provisions of the Plan shall continue in effect.

(g) Section Headings. Captions and headings are given to the sections and subsections of the Plan solely as a convenience of reference. Such headings shall not be deemed in any way material or relevant to the construction or interpretation of the provisions of the Plan or provision thereof.

(h) No Corporate Action Restriction. The existence of the Plan, the Award Agreements and the Awards granted hereunder shall not affect or restrict in any way the right or power of the Board or the shareholders of the Company to make or authorize: (i) any recapitalization, reorganization or other change in the capital structure or business of the Company or any Subsidiary, (ii) any merger, Control or other merger, amalgamation, consolidation or change in the ownership of the Company or any Subsidiary, (iii) the issuance of bonds, debentures, capital, preferred or prior preference stock ahead of or affecting the capital stock (or the rights thereunder) of the Company or any Subsidiary, (iv) any dissolution or liquidation of the Company or any Subsidiary, (v) any sale or transfer of all or part of the assets or business of the Company or any Subsidiary, (vi) the payment at the discretion of the Board or the Committee of any bonus or form of compensation that may be made at law and without contravention of any requirement of the principal exchange upon which the Shares are traded; or (vii) any other corporate act or proceeding by the Company or any Subsidiary. No Participant, beneficiary or other person shall have any claim under any Award or Award Agreement against any member of the Board or the Committee or the Company or any Employees, officers or agents of the Company or any Subsidiary, as a result of any such action.

(i) Stock-Based Awards in Substitution for Options or Awards Granted by Other Company. Awards may be granted under the Plan in substitution for or in connection with an assumption of employee, director and/or consultant stock options, stock appreciation rights, restricted stock or other stock-based awards granted by other entities to persons who are or who will become Employees of the Company or one of its Subsidiaries in connection with a distribution, merger or other reorganization by or for the Company, an entity or an affiliated entity, or the acquisition by the Company or one of its Subsidiaries, directly or indirectly, of all or a substantial part of the stock or assets of the granting entity. The Awards so granted may reflect the original terms of the related award being substituted for and need not comply with other specific terms of the Plan, with Common Stock substituted for the securities underlying the original award and with the number of Shares subject to such awards, as well as any exercise or purchase prices applicable to such awards, adjusted to account for differences in stock prices in connection with the transaction. Any shares that are delivered in connection with Awards that are granted by, or become obligations of, the Company, as a result of any such assumption or substitution in connection with any such transaction shall not be counted against the Share limit or other limits on the number of Shares available for issuance under the Plan, unless required by Applicable Laws or determined otherwise by the Company.

(j) Stock Certificates; Book Entry Procedures. Unless otherwise determined by the Committee or required by Applicable regulations, the Company shall not deliver to any Participant certificates evidencing Shares issued in connection with the Award; instead such Shares shall be recorded in the books of the Company (or as applicable, its transfer agent or stock plan agent).

(k) Insider Trading. Each Participant who receives an Award will comply with the Company's Insider Trading Policy or any other policy adopted by the Company from time to time covering transactions in the Company's Shares, as well as any applicable insider trading or market abuse laws in a Participant's jurisdiction.

(l) Recoupment/Clawback. An Award granted under the Plan will be subject to any provisions of Applicable Laws providing for the recoupment or clawback of incentive compensation; the terms of any Company recoupment, clawback or similar policy in effect at the time of grant of the Award; and any recoupment, clawback or similar provisions that may be included in the applicable Award Agreement.